

TENTATIVE RULING:

The unopposed motion to stay this action pending the action in federal court is granted, subject to periodic case management conferences in order to ascertain the status of the federal action. The February 11, 2026, case management conference will remain on calendar.

12. 9:00 AM

CASE NUMBER: JCCP5421

CASE NAME: PUBLIC HEALTH FOUNDATION WAGE AND HOUR CASES

***HEARING ON MOTION IN RE: COORDINATION OF CASES SET BY THE DEPARTMENT**

FILED BY:

TENTATIVE RULING:

Petitioner Alicia Stephens petitions for coordination of the following actions: (1) *Stephens v. Public Health Foundation Enterprises, Inc.*, Class Case No. 25STCV13543 (lead case) (“*Stephens Class Action*”); (2) *Stephens v. Public Health Foundation Enterprises, Inc.*, AGA Case No. 25PSCV02587 (“*Stephens PAGA Action*”) pending in Los Angeles County Superior Court, Spring Street Courthouse (collectively, referred to as “*Stephens Actions*”); (3) *Kizart v. Public Health Foundation Enterprises, Inc.*, Case No. C24-03522 pending in Contra Costa County Superior Court

For the reasons set forth below, the petition for coordination is **denied** without prejudice. In the event the pending settlement in *Kizart* is not approved, then the Court will consider a renewed petition.

Brief Factual and Procedural Background

Kammure Kizart filed the instant PAGA suit, Contra-Costa Case No. C24-03522, on December 26, 2024 after noticing the suit before the LWDA on October 21, 2024. The Kizart Complaint seeks PAGA civil penalties for Defendant’s alleged violation of California Labor Code sections: (a) 510 and 1198 (unpaid overtime); (b) 1182.12, 1194, 1197, 1197.1, and 1198 (unpaid minimum wages); (c) 512(a), 516, and 1198 (failure to provide meal periods); (d) 226.7, 516, and 1198 (failure to authorize and permit rest periods); (e) 226(a), 1174(d), and 1198 (non-compliant wage statements and failure to maintain accurate payroll records); (f) 227.3 (failure to pay vested vacation wages); (g) 204 (failure to timely pay wages during employment); (h) 201 and 202 (failure to timely pay final wages upon termination); and (i) 2802 (unreimbursed business expenses).

On May 8, 2025, Petitioner Alicia Stephens submitted a notice to the Labor and Workforce Development Agency (“LWDA”) alleging violations of the California Labor Code by Defendant Public Health Foundation Enterprises, Inc. On May 8, 2025, Petitioner filed her Class Action Complaint against Defendant Public Health Foundation Enterprises, Inc., seeking damages for violations of the California Labor Code. The Class Action Complaint includes allegations against Defendant for violations of the California Labor Code for (1) unpaid overtime; (2) unpaid meal period premiums; (3) unpaid rest period premiums; (4) unpaid minimum wages; (5) final wages not timely paid; (6) wages not timely paid during employment; (7.) non-compliant wage statements; (8) failure to keep requisite payroll records; (9.) unreimbursed business expenses; and (10) violation of California Business and Professions Code section 17200, et seq.

On July 14, 2025, Petitioner filed a separate Complaint for Enforcement under the Private Attorneys General Act, California Labor Code § 2698, Et Seq., Case No. 25PSCV02587 against Defendant Public Health Foundation Enterprises, Inc. The allegations include (1) failure to pay overtime, (2) failure to provide meal periods, (3) failure to provide rest periods, (4) failure to pay minimum wages, (5) failure to timely pay wages upon termination, (6) failure to timely pay wages during employment, (7) failure

to provide complete and accurate wage statements, (8) failure to keep complete and accurate payroll records, and (9) failure to reimburse necessary business-related expenses and costs.

On September 15, 2025, Petitioner filed Notices of Related Cases seeking to relate the *Stephens* Class Action and *Stephens* PAGA Action to the *Kizart* PAGA Action. On September 16, 2025, Defendant filed Notices of Related Cases seeking to relate the *Stephens* Class Action to the *Stephens* PAGA Action. On September 17, 2025, Petitioner filed a Notice of Related Case seeking to relate the *Kizart* PAGA Action to the *Stephens* Actions.

On September 29, 2025, Petitioner filed the instant petition for coordination.

The *Kizart* case reached a settlement following mediation with Retired Judge Howard R. Broadman on November 19, 2025. (Tabatabaepour Decl. at ¶¶ 3,4.) The motion for approval of the *Kizart* PAGA Settlement is currently set for hearing on June 11, 2026.

Analysis

Petitioner moves pursuant to CCP § 404.1 for an order coordinating the *Stephens* Class Action, *Stephens* PAGA Action, and *Kizart* PAGA Action and assigning them to the Los Angeles County Superior Court.

CCP§ 404.1 provides:

Coordination of civil actions sharing a common question of fact or law is appropriate if one judge hearing all of the actions for all purposes in a selected site or sites will promote the ends of justice taking into account whether the common question of fact or law is predominating and significant to the litigation; the convenience of parties, witnesses, and counsel; the relative development of the actions and the work product of counsel; the efficient utilization of judicial facilities and manpower; the calendar of the courts; the disadvantages of duplicative and inconsistent rulings, orders, or judgments; and, the likelihood of settlement of the actions without further litigation should coordination be denied.

Given the procedural posture of *Kizart*, the Court cannot conclude that coordinating the *Stephens* Actions and *Kizart* Action present common questions of law or fact. All that remains to be decided in *Kizart* is whether the settlement meets the criteria established for judicial approval of PAGA settlements. (See *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 64 [“fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements.]) That court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

The underlying Labor Code disputes will not be decided by the Court.

The Court cannot conclude that formal coordination is necessary or would serve judicial economy. As a consequence, the petition for coordination is **denied**.

13. 9:00 AM CASE NUMBER: MSC16-01118

CASE NAME: YUE VS. TRIGMAX SOLUTIONS

***HEARING ON MOTION IN RE: NEW TRIAL SET BY THE COURTROOM (NOTICE FILED 11.10.2025)**

FILED BY: YUE, DONGXIAO

TENTATIVE RULING: